

SENATE/HOUSE FILE _____
BY (PROPOSED ATTORNEY GENERAL
BILL)

A BILL FOR

1 An Act concerning reimbursement of the attorney general for
2 services relating to the second injury fund for workers'
3 compensation.
4 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

1 Section 1. Section 85.67, subsection 1, Code 2026, is
2 amended to read as follows:

3 1. The attorney general shall appoint a staff member
4 to represent the treasurer of state and the fund in all
5 proceedings and matters arising under this subchapter. The
6 attorney general shall be reimbursed up to ~~four hundred fifty~~
7 nine hundred thousand dollars annually from the fund for
8 services provided related to the fund. The reimbursement
9 amount shall be adjusted annually to reflect any increase in
10 the consumer price index, as tabulated by the federal bureau of
11 labor statistics, rounded to the nearest five dollars, since
12 the previous reimbursement. The commissioner of insurance
13 shall consider the reimbursement to the attorney general as an
14 outstanding liability when making a determination of funding
15 availability under section 85.65A, subsection 2.

16 EXPLANATION

17 The inclusion of this explanation does not constitute agreement with
18 the explanation's substance by the members of the general assembly.

19 This bill increases the maximum amount of reimbursement
20 to the attorney general annually from the second injury fund
21 for workers' compensation for services provided related to the
22 fund from \$450,000 to \$900,000. The bill provides that the
23 reimbursement amount shall be adjusted annually to reflect any
24 increase in the consumer price index, rounded to the nearest
25 \$5, since the previous reimbursement.